

IN THE HIGH COURT OF JUDICATURE AT BOMBAY
ORDINARY ORIGINAL CIVIL JURISDICTION

INTERIM APPLICATION NO.2302 OF 2026
IN
INCOME TAX APPEAL (L) NO. 25979 OF 2024

Principal Commissioner of Income
Tax Central 3

...Applicant/Appellant

Versus

Future Generali India Life
Insurance Co Ltd

...Respondent

Ms Gokhale Swapna Vaibhav, for applicant/appellant.

CORAM: G. S. KULKARNI &
DR. NEELA GOKHALE, JJ.

DATE: 11 SEPTEMBER 2026

P.C.

1. Despite service of notice, none appears for the Respondent. An affidavit of service to that effect is placed on record.

2. We have heard learned counsel for the Applicant/Appellant on this interim application which is filed praying for condonation of delay in filing the aforesaid appeal under Section 260A of the Income Tax Act. The delay which is sought to be condoned is of 179 days. There is no written opposition filed to this application by the learned counsel for the Respondent.

3. In the aforesaid circumstances, having perused the memo of the application and there being no opposition to this application, in our opinion, the reasons as set out certainly provide for an appropriate justification and a sufficient cause shown by the applicant in regard to the delay in filing the appeal. It is hence

in the interest of justice that the delay is condoned.

4. The application is hence allowed in terms of prayer clause (a). Interim application stands disposed of in the above terms. No costs.

5. Let the office objections, if any, be removed within a period of 8 weeks from today.

(DR. NEELA GOKHALE, J)

(G. S. KULKARNI, J.)